BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, PUNE

COMPLAINT NO. _____ OF 2026

IN THE MATTER OF:

Mandeep Singh .....**COMPLAINANT**

Versus

Axis Bank Ltd. .....**OPPOSITE PARTY**

COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT, 2019

MOST RESPECTFULLY SHOWETH:

Title of Complaint:

Complaint regarding Post-Reporting Cybercrime Settlement under RBI Master Circular Section 7(i) and Accrual of Penal Charges.

1. INTRODUCTION & FACTS OF THE CASE

1.1 The Complainant is a consumer of the Opposite Party, holding an Axis Bank Credit Card (previously ending in 7619, currently replaced by 6559).

1.2 On January 21, 2026 at 16:19 hrs, the Complainant fell victim to a highly sophisticated vishing scam. Perpetrators impersonating Axis Bank officials contacted the Complainant and provided a fraudulent link. Operating under the mistaken belief that the communication was a legitimate banking procedure, the Complainant entered credentials and authenticated via OTP.

1.3 Upon receiving the transaction debit alert for INR 1,05,766 on the Axis Bank Credit Card (ending in 7619), the Complainant realised the deceptive nature of the interaction. At approximately the 35-minute mark following this unauthorised debit incident, the Complainant took immediate countermeasures by calling Axis Bank customer care to block the credit card and raise a formal transaction dispute. Following this immediate notification to the bank, the Complainant visited the local police station and, under their guidance, registered a formal complaint on the National Cybercrime Reporting Portal (No: 31901260016169) and notified the Opposite Party's Principal Nodal Officer in writing on the same day, expressly requesting a freeze on the transaction settlement.

1.4 An active police investigation (Kharadi Police Station) traced the beneficiary of the transaction to a third-party individual (Mukesh Kumar) residing in Noida, Uttar Pradesh. This evidence was formally submitted to the Opposite Party on March 15, 2026.

1.5 Prior to approaching this Hon'ble Commission, the Complainant systematically exhausted all available grievance redressal mechanisms. The matter was escalated through the Axis Bank Principal Nodal Officer, the Reserve Bank of India (RBI) Ombudsman, the Ministry of Finance via the CPGRAMS portal (DEABD/E/A/26/0006137), and the National Consumer Helpline (INGRAM Docket: 9422255).

1.6 Throughout these communications, the bank's stance focused heavily on the Complainant's initial sharing of the OTP. The Complainant acknowledges this mistake. However, the core grievance placed before this Hon'ble Commission pertains to the bank's operational mechanism after the prompt reporting of the fraud.

1.7 Despite the bank receiving formal notification within exactly 35 minutes—a timeframe in which the funds would likely only be authorised and might not yet have settled with the merchant—the bank did not freeze the funds, nor did they put the transaction on hold or cancel the final settlement.

2. GROUNDS FOR COMPLAINT

A. Post-Reporting Liability (RBI Master Circular)

The Complainant refers to the Reserve Bank of India (RBI) Master Circular on Customer Protection (DBR.No.Leg.BC.78/09.07.005/2017-18). Paragraph 7(i) of the circular outlines the framework for liability, stating: *"Any loss occurring after the reporting of the unauthorised transaction shall be borne by the bank"*. The Complainant respectfully places this circular **(Attached as Annexure C-1)** before the Hon'ble Commission to determine its applicability to the present case. Because the Complainant reported the incident at the 35-minute mark, and the final financial settlement of funds presumably occurred *after* the bank was formally notified, the Complainant seeks the Commission's adjudication on the bank's post-reporting liability.

B. Axis Bank's Stated Operational Constraints vs. Regulatory Mandate

In response to queries regarding this post-reporting settlement, Axis Bank stated in an official email dated June 18, 2026 (SR: 260605733452):

"The subsequent settlement is carried out as per network-defined cycles and is not independently reversible at the issuing bank's end after successful authorization... the ability to intercept or halt settlement post-authorization is subject to payment network protocols and inter-bank processes, which do not always permit unilateral cancellation."

The Complainant places this operational admission before the Hon'ble Commission for evaluation. While this statement may accurately reflect Axis Bank's internal architecture, the RBI Master Circular outlines post-reporting liability without listing conditional exemptions for "payment network protocols." The Complainant respectfully requests the Hon'ble Commission to determine if the bank's internal network constraints provide a valid exemption from the post-reporting liability established by the RBI.

C. Accrual of Penal Charges During Active Regulatory Dispute

Currently, due to the automated nature of credit card billing cycles, heavy late payment fees and compounding finance charges continue to accrue on the disputed transaction amount. This ongoing accumulation of penalties causes continuous financial distress to the Complainant. Furthermore, the reporting of these disputed, unpaid dues to credit information bureaus (such as CIBIL) directly damages the Complainant's credit score and financial reputation. The Complainant respectfully seeks judicial evaluation regarding the application of standard default penalties to an unresolved, promptly reported cybercrime dispute. The Complainant requests the Commission to evaluate this from a moral compass and grant an administrative waiver of these automated penalties while the primary dispute is adjudicated.

3. RELIEF SOUGHT

In light of the facts and circumstances stated above, the Complainant respectfully requests the Hon'ble Commission to evaluate the matter and direct the Bank to provide the following relief, should the verdict fall in the Complainant's favor:

1. **Waive the Disputed Principal:** Absorb the liability of the INR 1,05,766 cybercrime loss, as the final settlement occurred post-reporting in alignment with Paragraph 7(i) of the RBI Master Circular.

2. **Reverse All Derived Penal Charges:** Reverse and nullify all late payment fees, finance charges, and penal interest that have accumulated on this disputed amount since January 21, 2026.

3. **Credit Record Rectification:** Rectify any adverse reporting made to CIBIL or other credit information bureaus related to this specific disputed balance to ensure the credit score of the Complainant is not negatively impacted.

4. **Compensation and Costs:** Award reasonable financial compensation for the mental agony , significant time expended navigating repetitive email loops, and the systemic runaround caused by the bank’s grievance mechanisms, along with covering the costs of this litigation.

5. **Refund Auto-Deductions:** Direct the bank to reverse and refund the amount of **INR 26,989** that was auto-deducted from the Complainant's savings/salary account between April and June 2026 against this disputed credit card balance.

6. Pass any other order or direction that this Hon'ble Commission may deem fit and proper in the interest of justice

AFFIDAVIT VERIFICATION

I, Mandeep Singh, aged 28 years, residing at Shubhpriya Hights, Patil Buva Nagar, Besides Marvel Citrine, Kharadi, Pune, do hereby solemnly affirm and declare as under:

1. That I am the Complainant in the present case and am fully conversant with the facts and circumstances of the case.
2. That the contents of the accompanying Consumer Complaint (Paragraphs 1 to 3) are true and correct to the best of my personal knowledge, derived from records maintained by me. No part of it is false and nothing material has been concealed therefrom.
3. That the Annexures C-1 to C-8 annexed to the complaint are true copies of their respective originals.

DEPONENT _____

Verification by Notary: Solemnly affirmed and signed before me at Pune on this _____ day of _____, 2026, by the Deponent who is identified by me.